
2:00 PM **LINE 7**

25-CIV-05414

PONY TRACKS RANCH, LLC VS. COUNTY OF SAN MATEO

PONY TRACKS RANCH, LLC
COUNTY OF SAN MATEO

GREGORY S. WALSTON
TIMOTHY J. FOX

MOTION FOR JUDGMENT UNDER SECTIONS 1085 AND 1094.5 OF THE CODE OF CIVIL PROCEDURE

TENTATIVE RULING:

Initially, the court notes that petitioner has not provided the correct address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, California 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

Petitioner is reminded that exhibits must be properly bookmarked. That is, “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

The Motion for Judgment on Petition for Writ of Mandate (Code Civ. Proc., § 1085, or alternatively, § 1094.5) brought by petitioner Pony Tracks Ranch, LLC is **DENIED**.

A. Background

Petitioner alleges that it owns seven parcels of realty in San Mateo County and filed applications with respondent for certificates of compliance as to each parcel. However, petitioner contends that instead of issuing the certificates (Gov. Code, § 66499.35, subd. (a)), or conditional certificates (*id.*, § 66499.35, subd. (b)), respondent wrongly found that the seven parcels had been merged into a single parcel. (Civ. Code, § 1093.) Petitioner seeks a writ mandating that respondent’s decision denying the requested certificates be set aside, and that respondent grant as to each of the seven parcels, either an unconditional or a conditional certificate, and that it comply with Civil Code, section 1093.

Petitioner moves for judgment on the Petition for Writ of Mandate, and for an Order finding that respondent violated the law by (1) failing to issue a certificate of compliance as to each of petitioner’s parcels (Gov. Code, § 66499.35) and (2) finding that petitioner’s parcels had been merged (Civ. Code, § 1093); and therefore setting aside respondent’s refusal to issue certificates and instructing respondent to issue unconditional certificates of compliance for each of the seven parcels.

B. Procedural Issues

On December 9, 2025, petitioner filed a Motion for Summary Judgment; or in the Alternative for Summary Adjudication; or in the Alternative for Judgment Under Sections 1985 and 1094.5 of the Code of Civil Procedure (MSJ/MSA). Respondent filed its opposition to the MSJ on August 11, 2026. On August 14, 2026, petitioner withdrew its MSJ and filed an Amended Notice and Motion Amended Notice of Motion and Motion for Judgment Under Sections 1085 and 1094.5 of the Code of Civil Procedure. Accordingly, only the motion for judgment under Code of Civil Procedure, sections 1085 or 1094.5 remains. Although the reply was not due until August 19, 2026, filing a notice of motion for the August 26, 2026, hearing date with the reply clearly does not provide timely notice to the opposing party. However, the change narrows the scope of the instant motion rather than introducing new material, so that respondent already had the required notice period to reply to the alternative motion (which is now the only motion remaining).

Nonetheless, since the instant motion seeks the same relief as the petition that initiated the instant action, it remains effectively a motion for summary judgment, whether or not it is labeled as such. Accordingly, the motion must comply with the attendant procedural requirements set forth by Code of Civil Procedure section 437c. However, neither party filed a separate statement, so the court could deny (*id.*, § 437c, subd. (b)(1)) or grant (*id.*, § 437c, subd. (b)(3)) the motion on this ground alone.

Respondent filed its opposition on August 11, 2026 — before the date on which it would have been due had Code of Civil Procedure, section 1005 applied (August 13, 2026), which it does not. (*Id.*, § 437c, subd. (b)(6).) The motion is late under the statute governing MSJs / MSAs; it would have been due on August 6, 2026 (*id.*, § 437c, subd. (b)(2)) — although petitioner had not yet withdrawn the MSJ / MSA, and even though this motion must comply with Section 437c. In its discretion, the court has nonetheless considered the opposition.

C. Legal Standards Governing the Motion

The Code of Civil Procedure provides that “[a] party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) A motion for summary judgment must be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Id.*, subd. (c).)

A plaintiff has met her or his “burden of showing that that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) If the plaintiff has met that burden, then the burden shifts to the defendant to show that: “a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant ... shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists

but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (*Ibid.*)

“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party.” (*Weiss v. People ex rel. Dep’t of Transportation* (2020) 9 Cal.5th 840, 864, citations omitted.) A trial court is justified in granting summary judgment “only if the declarations filed in support of it, strictly construed, contain facts sufficient to entitle the [proponents] to judgment, and those of the [opponents to the summary judgment motion], liberally construed, show that there was no issue of fact to be tried.” (*Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417.)

Issues of fact are to be found and not determined: “By an unbroken line of decision in this state since the date of the original enactment of section 437c, the principle has become well established that issue finding rather than issue determination is the pivot upon which the summary judgment law turns.” (*Walsh v. Walsh* (1941) 18 Cal.2d 439, 441.) That is, the “purpose of the summary judgment procedure is not to try the issues but merely to discover, through the medium of affidavits, whether there are issues to be tried and whether the parties possess evidence which demands the analysis of trial.” (*Melamed v. City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) California summary judgment law differs from federal law in that the former “continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.)

Ultimately, if the court has any uncertainty as to whether a grant of summary judgment is proper, “any doubts about the propriety of summary judgment must be resolved in favor of the opposing party.” (*Mateel Environmental Justice Foundation v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17.)

D. Petitioner Has Not Established that there are No Issues of Material Fact

Petitioner’s motion reiterates the claims asserted in the petition which originated this action.

In its opposition, respondent frames the issues raised by petitioner as a single question of law as to undisputed facts. Respondent argues that, as it pointed out to petitioner in its response to petitioner’s applications for certificates, a prior owner of petitioner’s parcels at issue applied for a resubdivision of the realty in December 1980 (the “1980 Map”) and received approval, so that the subdivision map that respondent then approved (Mabry Decl., exh D., at p. 193 [which is apparently mislabeled as a second “Exhibit C”]) shows the parcels at issue as a single parcel.

Contrary to petitioner, respondent does not assert that the parcels merged merely by coming into common ownership, nor by their conveyance or transfer together in a single instrument. Rather, as respondent explained in the June 3, 2025, letter to petitioner:

Staff has confirmed its initial findings that APN(s): 080-190-510, 080-190-390, 080-220-010, 080-210-010, and 080-210-020 were shown as a Parcel B on a subdivision map approved and recorded after July 20, 1945. Per Chapter 9.224.020.1.b. of County Subdivision regulations, Parcel B shall be deemed a legal lot without need for issuance of Certificate of Compliance, however an unconditional Certificate of Compliance Type A may be issued upon request.

(*Id.*, exh. C, at p. 192 [June 3 Letter].)

The June 3 Letter indicates that respondent has not refused to issue an unconditional certificate, and that respondent has relied on the subdivision map approved and recorded after July 20, 1945, that is, the 1980 Map. Respondent contends that the 1980 Map itself constituted the legal merger and resubdivision of the realty at issue. (Gov. Code, § 66499.20^{3/4} [version operative in 1980].)

Although petitioner asserts that the cited statute does not exist and is probably a typo (Reply, at pp. 4:27-5:2) which “Petitioner had no way of reviewing” (*id.*, 5:1), this is incorrect. Government Code “Section 66499.20 1/2 originally was enacted in 1977 as section 66499.20 3/4 and was renumbered as section 66499.20 1/2 and amended in 1982. (Stats. 1977, ch. 234, § 12, p. 1038; Stats. 1982, ch. 87, § 26, p. 269.)” (*Gomes v. County of Mendocino* (1995) 37 Cal.App.4th 977, 981, n.1.)

Government Code, section 66499.20^{3/4}, later 66499.20^{1/2}, read:

Subdivided lands may be merged and resubdivided without reverting to acreage by complying with all the applicable requirements for the subdivision of land as provided by this division and any local ordinances adopted pursuant thereto. ***The filing of the final map or parcel map shall constitute legal merging of the separate parcels into one parcel and the resubdivision of such parcel***, and the real property shall thereafter be shown with the new lot or parcel boundaries on the assessment roll. Any unused fees or deposits previously made pursuant to this division pertaining to the property shall be credited pro rata towards any requirements for the same purposes which are applicable at the time of resubdivision. Any streets or easements to be left in effect after the resubdivision shall be adequately delineated on the map. ***After approval of the merger and resubdivision by the governing body or advisory agency the map shall be delivered to the county recorder. The filing of the map shall constitute legal merger and resubdivision of the land affected thereby***, and shall also constitute abandonment of all streets and easements not shown on the map.

(Stats. 1977, ch. 234, § 12, p. 1038, emphasis added.)

“Section 66499.20^{1/2} is intended as a procedure for ‘undoing’ a previously recorded subdivision map.” (*Negron v. Dundee* (1990) 221 Cal.App.3d, 1502, 1504 (*Negron*).) “The language of this section, its placement in the article dealing with reversions to acreage (sections

66499.11 through 66499.20¾) and the general understanding of commentators show this section is intended for abandonment of a previously recorded subdivision map.” *Negron* further explains that “Section 66499.20½ performs a [function similar to a petition to reversion to acreage] but permits, in one step, both the abandonment of the old subdivision and creation of a new subdivision.” (*Id.*, at p. 1507.)

The differences between the form of this statute operative in 1980 and the current version (Gov. Code, § 66499.20.2), to which petitioner refers, are not at issue here. Respondent is therefore correct that parcels may be combined through the mechanism provided by the statute. Further, both the 1980 and the current versions of Government Code, section 66499.20.2 provide that, “The filing of the map shall constitute legal merger and resubdivision of the land affected thereby,” so that designating Parcel B as a remainder parcel does not remove it from the scope of the statute. (Gov. Code, § 66499.20.2.) Petitioner cites no authority in support of its contrary position.

However, the County’s response to petitioner’s application in the June 3 Letter also shows that at least one material fact is in dispute. That is, respondent’s letter addresses only five parcels as Parcel B, which leaves open the question of how respondent views the other parcels. Petitioner asserts that even if respondent’s decision were based on the 1980 resubdivision map, that map does not show merger of all of the parcels into a single “Parcel B.” Instead, it shows the boundaries of six of the seven parcels, with only two of the parcels having been merged into “Parcel B.” (Mabry Decl., exh. D, at p. 193.)

To illustrate this point further, petitioner has included a map in its reply which it describes as showing “the seven parcels as depicted in different colors[,]” alongside a map to which it refers as the “1981 Map” and the “1980 Map,” which “indicates that only two parcels have been merged into a single ‘Parcel B’: the previous purple and blue lots are now one, both labeled Exhibit [sic] B. But all other boundaries are intact,” and claims that respondent acknowledges as much. (Reply, at pp. 5:19-6:22.) The existence of a material fact in dispute requires the denial of what is effectively a motion for summary judgment.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, respondent’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 8**

25-CLJ-03180

AMERICAN EXPRESS NATIONAL BANK VS. MARIANNE SULIT

AMERICAN EXPRESS NATIONAL BANK
MARIANNE SULIT

DOUGLAS S. WALLACE

MOTION TO ENTER JUDGMENT PURSUANT TO CCP 664.6

TENTATIVE RULING:

Plaintiff American Express National Bank's Motion to Enter Judgment Pursuant to Code of Civil Procedure, section 664.6 is **DENIED WITHOUT PREJUDICE**.

The Notice of Motion provides an incorrect address for the hearing. Department 28 is located at 800 N. Humboldt Street, San Mateo, California 94401. Plaintiff is to provide defendant with the correct address of the hearing in any future motion.

Further, the Stipulation provides that if defendant fails to make payments, then plaintiff may have judgment entered against defendant for \$4,078.56, plus court costs, less any amounts received by plaintiff from defendant. (Stipulation, ¶ 6.) Plaintiff's counsel states that defendant has defaulted in the payment agreement, by not making payments according to the terms. (Ren Decl., ¶ 7.) Plaintiff's counsel further states that "Defendant failed to make payments." (*Ibid.*) Plaintiff's counsel implies that no payments have been made by defendant, but this wording does not unequivocally state that defendant failed to make *any* payments. The declaration also does not address whether defendant is entitled to credit for any payments received. Therefore, any future motion is required to provide a supporting declaration that specifically addresses this issue.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.